

Sajha Auction - Terms of Use and Privacy Policy

Effective date: September 3, 2026

These Terms of Use ("Terms") govern access to and use of the Sajha Auction platform ("Sajha Auction", "we", "us", or "the Platform"), a second-hand marketplace and auction service operating in Nepal. By creating an account, browsing listings, placing a bid, or completing a purchase, you agree to be bound by these Terms and by the Privacy Policy set out in Section 14 below. If you do not agree, please do not use the Platform.

1. Eligibility and Account Registration

You must provide accurate and current information when registering. Accounts may be created by verifying your email address with a one-time password (OTP), or by signing in with a Google account. You are responsible for maintaining the confidentiality of your password and for all activity that occurs under your account. Each person may hold only one active account. We may request additional details, such as your phone number, date of birth, and gender, to complete your profile.

An administrator may mark an account as inactive for violations of these Terms, suspected fraud, or unlawful activity. If your account is deactivated, you will be logged out and denied access until the matter is resolved.

2. Buyers and Sellers

Any verified user may browse listings, add items to a wishlist, and purchase directly-listed products. To list items for sale or auction, you must submit a seller application, which is reviewed and approved by our administrators before seller privileges are granted. Approval for live auction bidding is likewise granted on a per-account basis and may be withdrawn if these Terms are breached.

3. Product Listings and Approval

Every product listing, whether for direct sale or auction, is reviewed by an administrator before it becomes publicly visible. Approval indicates that the listing meets our content guidelines; it does not verify the condition, authenticity, or legality of the item, which remains the seller's sole responsibility. Sellers must describe items accurately, including condition, category, and any negotiability of price, and must disclose the intended meetup location or delivery arrangement.

4. Direct-Sell Purchases, Cart, and Checkout

Items marked for direct sale may be added to your cart and purchased through checkout. At checkout you choose a handover method (in-person meetup or delivery) and a payment method from those offered on the Platform, which may include cash on meetup, cash on delivery, and supported digital wallets or payment gateways as made available from time to time. An order record is created for every purchase and can be tracked from your order history. You agree to complete the agreed handover and payment in good faith once an order is placed.

5. Auctions and Bidding

Traditional auctions run for a defined start and end time and display a live standing price. The minimum amount by which a bid must exceed the current price ("step increment") rises automatically as the price increases, and a seller may set a reserve price below which the item will not be sold.

Sajha Auction supports proxy bidding: instead of a single visible bid, you may register a private maximum amount, and the system will automatically place the smallest bid necessary on your behalf to keep you in the lead, up to your maximum, whenever another bidder is outbid. Your maximum amount is never disclosed to other bidders.

A bid is a binding offer to purchase the item at that price if you are the winning bidder. Bids may not be

withdrawn once placed. When an auction ends, the winner is the highest bidder whose bid meets or exceeds the reserve price; if two or more bids are tied at the highest amount, the bid submitted earliest in time wins. If no bid meets the reserve price, the item remains unsold. Winning an auction automatically creates an order for the winning amount, and the winner is notified by on-site notification and email.

You must not place bids you do not intend to honor, use multiple accounts to bid against yourself or to inflate the price of your own listing, or otherwise manipulate the bidding process. Violations may result in the bid being voided and the account being suspended.

6. Fees

Any service or transaction fees applicable to listings, purchases, or auctions will be clearly disclosed on the Platform before you commit to a listing or a bid. We may introduce, change, or waive fees from time to time by posting an updated notice on the Platform.

7. Meetup and Delivery

Where a meetup is agreed, both parties are responsible for arranging a safe, public location and time. We recommend meeting in well-lit, populated public places and inspecting an item before completing payment. Sajha Auction is not a party to the handover and is not responsible for the conduct of buyers or sellers during meetups or deliveries.

8. Prohibited Conduct

You agree not to: list stolen, counterfeit, illegal, or unsafe items; misrepresent the condition, origin, or ownership of an item; engage in shill bidding or bid manipulation; harass, threaten, or defraud another user through the messaging feature or otherwise; attempt to circumvent seller or auction approval controls; or use the Platform for any unlawful purpose. We may remove listings, cancel bids or orders, and suspend or terminate accounts that violate this section.

9. Messaging and Notifications

Buyers and sellers may communicate through the Platform's messaging feature to coordinate a sale or ask questions about a listing. You will receive account, auction, and order notifications both within the Platform and, where applicable, by email. Messages and notifications must not be used to send spam, unsolicited advertising, or unlawful content.

10. Wishlist and Bookmarks

You may save items to a wishlist or bookmark them for later. This feature is provided for convenience only and does not reserve an item, guarantee its availability, or lock in its price.

11. Account Suspension and Termination

We may suspend or terminate your access to the Platform, immediately and without prior notice, if we reasonably believe you have violated these Terms, engaged in fraudulent or unlawful conduct, or created risk or possible legal exposure for us or other users. You may stop using the Platform and request account closure at any time by contacting us as described in Section 15.

12. Intellectual Property

The Sajha Auction name, logo, and platform design are the property of Sajha Auction and may not be used without prior written permission. You retain ownership of the text, photos, and other content you submit in a listing, and you grant us a non-exclusive, worldwide license to display that content on the Platform for the purpose of operating the marketplace.

13. Disclaimers and Limitation of Liability

The Platform is provided on an "as is" and "as available" basis. Sajha Auction facilitates listings, bidding, and order tracking between independent buyers and sellers, but does not itself own, inspect, or guarantee any item listed by a third party. To the fullest extent permitted by law, Sajha Auction is not liable for any indirect, incidental, or consequential loss arising from a transaction, meetup, delivery, or communication between users, and our aggregate liability for any claim relating to the Platform is limited to the fees, if any, you paid to us in connection with that claim.

14. Privacy Policy

This section explains what information we collect and how we use it.

Information we collect

Account details you provide, such as your name, username, email address, phone number, date of birth, gender, profile photo, and short bio; authentication data from Google when you sign in with Google; listing, order, bid, wishlist, and message content you create on the Platform; and technical data such as your IP address, recorded against bids for auction-integrity purposes.

How we use your information

To create and secure your account, including sending OTP verification codes by email; to operate listings, orders, auctions, and messaging; to send transactional notifications, such as seller approval, product approval, and auction-won notices, by email and within the Platform; to display real-time updates, such as live bid changes, using our real-time notification service; and to maintain the safety and integrity of the marketplace, including detecting bidding abuse.

Sharing of information

We do not sell your personal information. We share information with service providers that help us operate the Platform, such as our email delivery provider, our real-time messaging service, and, where you choose to sign in with Google, Google itself. Your public listing content, display name, and avatar are visible to other users of the Platform. Your contact and payment details are shared with the counterparty of a specific order or auction only as needed to complete that transaction.

Cookies and local storage

We use your browser's local storage to remember lightweight preferences, such as your light or dark display theme, and standard session cookies to keep you signed in. These are not used for third-party advertising.

Data retention and your choices

We retain account and transaction data for as long as your account is active and as needed to meet legal, tax, and dispute-resolution obligations thereafter. You may review and update most profile information from your account settings, and you may request access to, correction of, or deletion of your personal information by contacting us as described below, subject to records we are required to keep by law.

15. Changes to These Terms

We may update these Terms and this Privacy Policy from time to time to reflect changes to the Platform or applicable law. We will post the updated document on the Platform with a new effective date. Continued use of the Platform after an update constitutes acceptance of the revised Terms.

16. Governing Law and Contact

These Terms are governed by the laws of Nepal. Any dispute arising from your use of the Platform will be handled in accordance with applicable Nepali law. If you have questions about these Terms or the Privacy Policy, or wish to exercise a privacy right described in Section 14, please contact the Sajha Auction support team through the contact details published on the Platform.